Superior Court of the State of California
County of Orange

TENTATIVE RULINGS FOR DEPARTMENT C32
JUDGE LEE L. GABRIEL, Dept. C32

Date: August 4, 2026

APPEARANCES: Department C32 conducts non-evidentiary proceedings, such as law and motion, remotely, by Zoom videoconference. All counsel and self-represented parties appearing for such hearings must check-in online through the Court's civil video appearance website at https://www.occourts.org/media-relations/civil.html prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Check-in instructions and instructional video are available at https://www.occourts.org/mediarelations/aci.html. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" ("Appearance Procedures") and "Guidelines for Remote Appearances" ("Guidelines") are also available at https://www.occourts.org/mediarelations/aci.html.

Parties preferring to appear in-person for law and motion hearings may do so pursuant to Code of Civil Procedure § 367.75 and OCLR 375.

All hearings are open to the public.

If you desire a transcript of the proceedings, you must provide your own court reporter (unless you have a fee waiver and request a court reporter in advance). Parties must comply with the Court's policy on the use of privately retained court reporters which can be found at:

- Civil Court Reporter Pooling; and
- Court Reporter Interpreter Services

These are the Court's tentative rulings. They may become an order if the parties do not appear at the hearing. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

If the parties agree to submit on the Court's tentative rulings, please call the Court Clerk to inform the court that all parties submit on the Court's tentative ruling **(657-622-5232)**. The tentative ruling will then become the order of the Court upon a party or parties informing the Court that all parties submit to the Court's tentative ruling.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

#	Case Name	Tentative
1.	**FRANCIS REALTY INC. FIRST AMERICAN TITLE INSURANCE COMPANY 2019-01102865**	**MOTION TO BE RELIEVED AS COUNSEL OF RECORD** The motion of attorney Jacoby Perez, Esq. of Fortra Law to withdraw as attorney of record for Plaintiff Francis Realty, Inc. is GRANTED. (Code Civ. Proc. § 284, CRC 3.1362.) Attorney will be relieved as counsel of record for client effective upon filing of a proof of service of the signed order on client. Moving attorney is to give notice.
2.	**JUSTICE MERITUS LLC VS. LOGAN 2022-01254056**	1. **MOTION TO BE RELIEVED AS COUNSEL OF RECORD** 2. **MOTION TO BE RELIEVED AS COUNSEL OF RECORD** 3. **MOTION TO BE RELIEVED AS COUNSEL OF RECORD** 4. **MOTION TO BE RELIEVED AS COUNSEL OF RECORD** The motion of attorney Laura Petrie, Cox, Castle & Nicholson, LLP to withdraw as attorney of record for defendants Moreno Valley Gateway, LLC; MVG Turnpike, LLC; Statewide Ministorage/Menifee, LLC; and Statewide Ministorage/Barstow, LLC aka Statewide Mini Storage-Barstow is GRANTED. (Code Civ. Proc. § 284, CRC 3.1362.) Attorney will be relieved as counsel of record for client effective upon filing of a proof of service of the signed order on client. Moving attorney is to give notice.
3.	**DELEON VS. GASCO 2024-01417080**	**MOTION TO COMPEL DEPOSITION (ORAL OR WRITTEN)** The unopposed motion of defendant Rosmar Rodriguez Gasco for an order compelling plaintiff Carlos Alberto Castillo Deleon to appear for deposition is GRANTED. Plaintiff is to appear for deposition at a mutually convenient date within 25 days of service of the notice of ruling. The Court GRANTS a monetary sanction of $1905 to defendant against plaintiff and his attorneys of record payable within 25 days of service of the notice of ruling. The Court DENIES defendant's request for a statutory penalty of $500 under Code Civ. Proc. § 1992 because it is not applicable, i.e., a deposition notice is neither a subpoena nor a court order.

4.	**RUEANGWIWAN VS. MEEHAN** **2025-01482780**	1. **MOTION TO COMPEL FURTHER RESPONSES TO FORM INTERROGATORIES SET ONE** 2. **MOTION TO COMPEL FURTHER RESPONSES TO SPECIAL INTERROGATORIES SET ONE** 3. **MOTION TO COMPEL PRODUCTION SET ONE** Plaintiff Suphakan Rueangwiwan's Motion to Compel Further Responses to Form interrogatories, Set One; Motion to Compel Further Responses to Special Interrogatories, Set One; and Motion to Compel Further Responses to Production of Documents, Set One are DENIED in part and GRANTED in part. Plaintiff informs the court that these motions have been resolved except for two additional videos requested. As such, the substantive portion of the motion is denied as moot. Plaintiffs request for sanctions is granted in the reduced amount of to $1,650 per motion ($4,950 for all 3) plus $300 in costs for filing fees. Defendant John Meehan is ordered to pay to Plaintiff monetary sanctions in the amount of $5,250 within 25 days.
5	**JOLLEY VS. LEMA** **2025-01504876**	**MOTION FOR LEAVE TO FILE CROSS COMPLAINT** Defendant/Cross-Defendant The Boeing Company's motion for leave to file a Cross-Complaint against Blake Air Conditioning & Service Co., Inc. and Rommel Lema is GRANTED. A defendant can cross-complain against a codefendant or third person not yet a party to the action only if the cause of action asserted "(1) arises out of the same transaction, occurrence, or series of transactions or occurrences as the cause brought against him or (2) asserts a claim, right, or interest in the property or controversy which is the subject of the cause brought against him." (Code Civ. Proc. §428.10, subd. (b).) If the proposed cross-complaint is permissive, leave of court may be granted "in the interests of justice" at any time during the course of the action. (Code Civ. Proc., § 428.50(c).) The proposed cross-complaint asserts causes of action for equitable indemnity, apportionment of fault, contribution, and declaratory relief against Blake Air Conditioning & Service Co., Inc. and Rommel Lema. The proposed cross-complaint is therefore permissive. The claims are related to the incident alleged by Plaintiff in her Complaint and interests of justice weigh in favor of granting the motion for leave to file a cross-complaint. Further, the Motion is unopposed and Plaintiff, the Blake Defendants, and Defendant Robert Medeiros have all stipulated to granting Boeing leave to file its Cross-Complaint. (Drummond Decl., ¶¶ 7-9, Exhs. C-E.)

		The Boeing Company is to file the proposed Cross-Complaint, attached to the Motion, without any changes, modifications, or alterations, within 7 days of the date of the hearing. Moving party is to give notice.
6.	**PRIMARY CARE ASSOCIATESOF CALIFORNIA, INC. VS. BZ HEALTH NETWORK OF CALIFORNIA, INC. 2025-01451241**	**1. MOTION TO COMPEL COMPLIANCE** Plaintiff Primary Care Associates of California, Inc.'s Motion to Compel Compliance with this Court's January 27, 2026 Order is DENIED. Plaintiff seeks an order compelling Defendants to respond to discovery. This Court only ordered Plaintiff "to file a separate statement in compliance with Section 2019.210 and is prohibited from engaging in discovery until it complies." (ROA 166.) It made no order as to Defendants providing discovery responses upon Plaintiff filing such. Thus, the Motion is denied because there is no basis in the January 27, 2026 to order Defendants to provide discovery responses. **2. MOTION TO ENFORCE PROTECTIVE ORDER** Defendants BZ Health Network of California, Inc. and BZ Health of California's Motion for Protective Order is GRANTED. The Court, after review of the nature of the trade secret claims and the separate statement, in its discretion, finds the separate statement lacks sufficient particularity. Thus, Plaintiff is ordered to amend its separate statement "In any action alleging the misappropriation of a trade secret under the Uniform Trade Secrets Act (Title 5 (commencing with Section 3426) of Part 1 of Division 4 of the Civil Code), before commencing discovery relating to the trade secret, the party alleging the misappropriation shall identify the trade secret with reasonable particularity subject to any orders that may be appropriate under Section 3426.5 of the Civil Code." (Code Civ. Proc., § 2019.210.) > The trade secret designation mandated by section 2019.210 is not itself a pleading but it functions like one in a trade secret case because it limits the scope of discovery in much the same way as the allegations of a complaint limit discovery in other types of civil actions. . . . . The rule that a trade secret must be pled with "reasonable particularity" does not mean that the designation must be strictly construed against the pleader. Generally speaking, pleadings are to be liberally construed in favor of the pleader and doubts about the permissible scope of discovery are to be resolved in favor of disclosure. [¶] "Reasonable

		particularity" mandated by section 2019.210 does not mean that the party alleging misappropriation has to define every minute detail of its claimed trade secret at the outset of the litigation. Nor does it require a discovery referee or trial court to conduct a miniature trial on the merits of a misappropriation claim before discovery may commence. Rather, it means that the plaintiff must make some showing that is reasonable, i.e., fair, proper, just and rational[,] under all of the circumstances to identify its alleged trade secret in a manner that will allow the trial court to control the scope of subsequent discovery, protect all parties' proprietary information, and allow them a fair opportunity to prepare and present their best case or defense at a trial on the merits. (*Advanced Modular Sputtering, Inc. v. Superior Court* (2005) 132 Cal.App.4th 826, 835-836 [internal citations omitted].) "The trade secret must be described 'with sufficient particularity to separate it from matters of general knowledge in the trade or of special knowledge of those persons who are skilled in the trade, and to permit the defendant to ascertain at least the boundaries within which the secret lies.' [Citations.]" (*Altavion, Inc. v. Konica Minolta Systems Laboratory, Inc.* (2014) 226 Cal.App.4th 26, 43-44.) "[T]he rule requiring a plaintiff to describe its trade secrets before the commencement of discovery serves several purposes: it discourages the filing of meritless claims, prevents plaintiffs from using the discovery process to uncover the defendant's trade secrets, assists the trial court in framing the scope of discovery, and 'enables defendants to form complete and well-reasoned defenses, ensuring that they need not wait until the eve of trial to effectively defend against charges.' " (*Id*. at 44.) The trial court has discretion in determining the level of detail needed to comply with Section 2019.210. (*Perlan Therapeutics, Inc. v. Superior Court* (2009) 178 Cal.App.4th 1333, 1349.) In *Brescia v. Angelin* (2009) 172 Cal.App.4th 133, the court found the plaintiff had provided a sufficient trade secret designation. "Brescia filed under seal the trade secret designation that is at issue in this appeal. In it, he identified two alleged trade secrets: his pudding formula and his manufacturing process. He described his pudding formula, as follows: "Attached under seal as exhibit 1 is a single page, containing a list of the 15 specific ingredients that constituted Brescia's pudding formula in the last quarter of 2003. The list identifies each ingredient by its common name and the percentage it constitutes of the total pudding. The second list identifies the same 15 ingredients listed by their supplier and brand name. Brescia alleges that this formula is a trade secret." As promised, exhibit 1 contained two lists, one of which gave the common name of 15 ingredients and their respective percentages in the final product ranging from 82.6 percent to .03 percent, and the

		other of which gave the brand name and supplier. The trade secret designation described Brescia's manufacturing process as follows: "Attached under seal as exhibit 2 is a single page description of the manufacturing process for pudding described above as of the last quarter of 2003. Brescia alleges that this manufacturing process is a trade secret." The attached exhibit listed each step in the mixing, testing, and code marking of the pudding." (*Id.* at 140-141.) "We conclude that whether a trade secret designation adequately distinguishes the allegedly protected information from the general knowledge of skilled persons in the field is a function of the particularity of the designation—that is, a function of whether the stated details themselves are sufficient, given the nature of the alleged secret and the technology in which it arises, to permit the defendant to ascertain whether and in what way the information is distinguished from matters already known, and to permit the court to fashion appropriate discovery." (*Id*. at 144.) The description of the trade secrets in Plaintiff's separate statement is too general and are within general knowledge. Unlike in *Brescia*, all the listed items in the trade secrets are generalized and unspecific such that they could be distinguished from other physician group's own contract, rates, formulas, methodologies, or the like. Accordingly, the Court determines this case requires additional specificity. **3. MOTION TO COMPEL DEPOSITION (ORAL OR WRITTEN)** Plaintiff Primary Care Associates of California, Inc.'s Motion to Compel the Deposition of Defendants' Person Most Knowledgeable is DENIED as premature. This Motion is premature based on this Court's ruling on the insufficient separate statement under Code of Civil Procedure, section 2019.210. **4. MOTION TO DEEM FACTS ADMITTED SET ONE** Plaintiff Primary Care Associates of California, Inc.'s Motion to Deem Matters Admitted is DENIED as premature. This Motion is premature based on this Court's ruling on the insufficient separate statement under Code of Civil Procedure, section 2019.210.

7.	**AMERICAN EXPRESS NATIONAL BANK VS. YOUNG** **2024-01435667**	**MOTION TO SET ASIDE/VACATE DISMISSAL** Plaintiff American Express National Bank's Motion to Set Aside Dismissal and Enter Judgment is GRANTED. The dismissal of the entire action is set aside and judgment is entered in Plaintiff's favor and against Defendants in the sum of $292,893.21 including costs. The Court retained jurisdiction pursuant to Code of Civil Procedure section 664.6. (Dyle Decl., Ex. A, ¶ 18.) Defendants breached the Settlement Agreement by failing to make timely payments under the Agreement. Defendants agreement to pay Plaintiff $50,000 per month for four months beginning in May 2025 and ending in August 2025. (Dyle Decl., Ex. A, ¶ 6.) Defendants never made any payments under the settlement agreement. (Dyle Decl., ¶¶ 7-10.)
8.	**SHEEHAN VS. SHEEHAN** **2024-01414691**	**ORDER TO SHOW CAUSE RE: CONTEMPT** The Order to Show Cause Re: Contempt is CONTINUED to 9/4/26 at 9:00 a.m. in Department C32. Plaintiff/Cross-Defendant Colleen Sheehan is **ORDERED** to return possession of the real property located at 2247 Meyer Place, Costa Mesa, CA 92627 and the 'Ferraris Online' YouTube channel before the continued hearing date. The parties may meet and confer regarding the specific manner and method of return. <u>Legal Standard</u> "The essential facts to establish contempt for violation of a court order are '(1) the making of the order, (2) knowledge of the order, (3) ability of the respondent to render compliance, and (4) willful disobedience of the order.' [Citation]" (*Moore v. Superior Court of Orange County* (2020) 57 Cal.App.5th 441, 456.) When a contempt is not committed in the immediate view and presence of the court, or of the judge at chambers, an affidavit must be presented to the court or judge of the facts constituting the contempt, or a statement of facts by the referees, arbitrators, or other judicial officers. (Code Civ. Proc., § 1211(a).) Once an affidavit has been filed, an ex parte order to show cause will be issued commanding the accused to appear before the court and answer the charges. (Code Civ. Proc., § 1212.) When the party charged with the contempt appears, the court or judge must proceed to investigate the charge. The court or judge must hear any answer which the accused may make, and may examine witnesses for or against him or her. The hearing may be adjourned from time to time if necessary. (Code Civ. Proc., § 1217.) The party charged with contempt is entitled to a hearing at which they may present any appropriate defenses, either by affidavits or witnesses, or both. (*Hotaling v. Superior Court, City and County of San Francisco* (1923) 191 Cal. 501.) After the evidence has been presented, the court must determine whether the

person proceeded against is guilty of the contempt charged. (Code Civ. Proc., § 1218(a).)

The defenses that may be asserted in a contempt proceeding include:
(1) invalidity of the judgment or order violated;
(2) no notice or knowledge of the judgment or order violated;
(3) inability to comply with the judgment or order violated; and
(4) good faith violation coupled with a willingness to comply with the judgment or order at the time of the hearing. (8 Witkin, California Proc. (4th ed.), Enforcement of Judgment §§ 341 to 345.)

If the person charged with contempt is found guilty, they may be punished by a fine not exceeding $1,000 or by imprisonment for not more than five days, or both. (Code Civ. Proc., § 1218(a) (emphasis added.)

<u>Merits</u>

The Interlocutory Judgment held regarding the quiet title claims: "Colleen Sheehan has no legal or equitable interest in the real property located at 2247 Meyer Place, Costa Mesa, CA 92627. … Michael W. Sheehan as Trustee of the Michael W. Sheehan Revocable Trust Holds title in fee simple to the real property located at 2247 Meyer Place, Costa Mesa, CA 92627, and that Colleen Sheehan, nor any other party claiming under her, has an ownership, possessory, equitable or other interest in 2247 Meyer Place, Costa Mesa, CA 92627 adverse to Cross-Complainant Michael Sheehan. … Colleen Sheehan, as of the date this Judgment is entered, is in possession of the 2247 Meyer Place, Costa Mesa, CA 92627 property without the consent of Michael Sheehan." (ROA 499, ¶¶ 10-11.) "The Court grants Cross-Complainants' claim for Injunctive Relief. [¶] b. The 'Ferraris Online' YouTube channel [sic] is the sole property of Michael W. Sheehan. Colleen Sheehan nor any other party has an ownership, possessory, equitable or other interest in the 'Ferraris Online' YouTube channel. [¶] The real property located at 2247 Meyer Place, Costa Mesa, CA 92627, is the sole property of Michael W. Sheehan as Trustee of the Michael W. Sheehan Revocable Trust. Colleen Sheehan, nor any other party claiming under her, has an ownership, possessory, equitable or other interest in 2247 Meyer Place, Costa Mesa, CA 92627." (ROA 499, ¶ 15.)

The Court finds Plaintiff's argument that she can retain possession of the real property and YouTube channel after judgment was rendered against her stating she has no possessory interest is without merit. Her arguments that the judgment did not list every minute detail and step to returning the property are also without merit. The Court finds requiring judgments to have strict guidelines to enforce judgments would only lead to additional burdens on parties and the court. However, the **Court shall provide Plaintiff one last opportunity to cure her noncompliance.**

9.	**NEW MEI AO INC. VS. DOE 1** **2026-01582312**	**ORDER TO SHOW CAUSE RE: PRELIMINARY INJUCTION** The Court WILL ENTER the preliminary injunction against defendant JPMorgan Chase Bank that enjoins and restrains it and its agents, employees, representatives, etc., from spending, transferring, encumbering, selling, or otherwise disposing of any part of the misappropriated loan funds identified in the order and in plaintiff's ex parte application. The Court has ordered Defendants John Doe 1 and JPMorgan Chase Bank to appear and show cause why a preliminary injunction should not issue pending trial or further order in this case that enjoins and restrains them and their agents, employees, representatives, etc., from spending, transferring, encumbering, selling, or otherwise disposing of any part of the misappropriated loan funds identified in the order and in plaintiff's ex parte application. Plaintiff does not know the true identity of Defendant John Doe 1, who allegedly posed as someone else to obtain large refinancing loan from plaintiff secured by a fraudulent deed of trust. As a result, Plaintiff has not served the summons and complaint or the OSC on Defendant John Doe 1, and the Court does not yet have personal jurisdiction over him. Plaintiff has, however, served the summons and complaint on defendant JPMorgan Chase Bank and has made a general appearance in the action through its counsel. Plaintiff has not alleged any wrongdoing on the part of this defendant; it simply is the depository institution where defendant John Doe 1 has accounts and deposited the loan proceeds. Plaintiff personally served the OSC on defendant JPMorgan Chase Bank as directed by the Court and it has not filed any opposition in response to the OSC. A preliminary injunction is an order that is sought by a plaintiff prior to a full adjudication of the merits of its claim. (*Amgen Inc. v. Health Care Services* (2020) 47 Cal.App.5th 716, 731). To obtain a preliminary injunction, a plaintiff ordinarily is required to present evidence of irreparable injury or interim harm that it will suffer if an injunction is not issued pending an adjudication of the merits. (*Ibid).* Trial courts evaluate two interrelated factors when deciding whether or not to issue a preliminary injunction. (*Amgen Inc. v. Health Care Services, supra*, 47 Cal.App.5th at p. 731). The first is the likelihood that the plaintiff will prevail on the merits at trial. (*Ibid)*. The second is the interim harm that the plaintiff is likely to sustain if the injunction were denied as compared to the harm that the defendant is likely to suffer if the preliminary injunction were issued. (*Ibid)*. Here, plaintiff's complaint (ROA 2) contains four causes of action for conversion, unjust enrichment, money had and received, and declaratory relief. As noted above, plaintiff alleges that defendant John Doe 1 posed as someone else to obtain a large loan from

		plaintiff and secured it with a fraudulent deed of trust and deposited the funds into an account with co-defendant JPMorgan Chase Bank. Plaintiff also alleges that the real owner of the property encumbered by the fraudulent deed of trust has contacted it to indicate that the deed of trust is void. Plaintiff has submitted evidence, consisting of the declaration of its CEO and CFO and several exhibits to support its claims. The exhibits include copies of the promissory note executed by defendant John Doe 1 (using the name of the owner of the real property) (Exhibit 2), two checks for payment of interest on the loan drawn on an account with Defendant JPMorgan Chase Bank and signed by Defendant John Doe 1 (using the name of someone else) (Exhibit 3), and a demand letter from an attorney representing the true owner of the real property encumbered by the fraudulent deed of trust and a draft complaint against plaintiff. (Exhibit 3.) Plaintiff has shown that its allegations have merit against defendant John Doe 1 and that it will probably prevail on its causes of action. Plaintiff has also shown that the funds are most likely in a checking account with Co-Defendant JPMorgan Chase Bank. Thus, the balance of the equities favor Plaintiff, and the injunction should be issued to Defendant JPMorgan Chase Bank. Plaintiff has asked that the Court waive the posting of a bond. However, a bond is generally required for a preliminary injunction but may be waived under circumstances where the parties stipulate to the injunction. (*Greenly v Cooper* (1978) 77 Cal.App.3d 382, 385). Indeed, under subdivision (a) of Code Civ. Proc. § 529, "[o]n granting an injunction, the court or judge must require an undertaking on the part of the applicant to the effect that the applicant will pay to the party enjoined any damages, not exceeding an amount to be specified, the party may sustain by reason of the injunction, if the court finally decides that the applicant was not entitled to the injunction." The Court will take oral argument regarding the amount of the bond to be posted by Plaintiff.
11.	**SEDANO VS. ALL AMERICAN GENERAL BUILDING CONTRACTOR INC. 2024-01418397**	**MOTION TO TAX COSTS** The Motion to Strike or Tax Costs by Defendant All American General Building Contractor, Inc. dba Great American Home Remodel is CONTINUED to 8/25/26, to be heard concurrently with Plaintiff's motion for attorney fees. The Court must decide the attorney fee motion first in order to determine whether Plaintiff is entitled to expert witness fees as costs. Code Civ. Proc. § 998.)

		Movant's counsel failed to file proof of service of the motion or reply. (Cal. Rule of Court 3.1300(c).) It appears Plaintiff was served with the motion since an opposition was timely filed. However, Defendant must promptly file proof of service of both the motion and reply. In future, Defendant's counsel must accompany all filings with proof of service on opposing counsel.
12.	**SENTINEL STRATEGIC SERVICES, LLC VS. SOLERA AT APPLE VALLEY COMMUNITY ASSOCIATION, INC. 2024-01399350**	**MOTION FOR ATTORNEY FEES** The Motion for Attorney Fees by Defendant Solera at Apple Valley Community Association is partially GRANTED in the amount of $14,403.47. The Court grants the motion but reduces the total requested fees/costs of $19,204.62 by 25% based on the fact that Defendant only prevailed as to six out of Plaintiff's eight causes of action. <u>Legal Standard:</u> Code of Civil Procedure section 425.16(c)(1) provides, "Except as provided in paragraph (2), in any action subject to subdivision (b), a prevailing defendant on a special motion to strike shall be entitled to recover that defendant's attorney's fees and costs. If the court finds that a special motion to strike is frivolous or is solely intended to cause unnecessary delay, the court shall award costs and reasonable attorney's fees to a plaintiff prevailing on the motion, pursuant to Section 128.5." However, a party who prevails on an anti-SLAPP motion which is only an "illusory" or "minimal and insignificant" victory with no "practical effect" is not entitled to recover their attorney fees. (See *Lin v. City of Pleasanton* (2009) 176 Cal.App.4th 408, 425–426; *Moran v. Endres* (2006) 135 Cal.App.4th 952, 954–955.) <u>Merits:</u> Defendant seeks to recover fees of $19,204.62 incurred in regard to its anti-SLAPP motion to strike Plaintiff's complaint, which was granted in part on 12/10/24. The Court of Appeal upheld the partial grant of the anti-SLAPP motion and issued a remittitur on 4/15/26. The Court partially granted moving Defendant's anti-SLAPP motion as to the 3rd-8th causes of action and denied the motion as to the 1st-2nd causes of action which are based in contract. Defendant obtained a substantial practical benefit from the motion by eliminating Plaintiff's tort claims. Plaintiff contends the requested fees include the following non-compensable items: "(1) pre-litigation work performed before Plaintiff SENTINEL STRATEGIC SERVICES, LLC ("Plaintiff") filed its Complaint on May 1, 2024 (ROA, No. 2), which could not have been incurred in connection with the Anti-SLAPP Motion; (2)

		litigation activities unrelated to the Anti-SLAPP Motion; (3) excessive, duplicative, and unnecessary attorney time, including multiple attorneys performing overlapping work and conferring unnecessarily with one another; (4) noncompensable clerical and administrative tasks, including filing, service, calendaring, document organization, and file maintenance; (5) inflated hourly rates that exceed the rates represented in Defendant's supporting declaration; and (6) inadequately documented and nonrecoverable litigation expenses, including purported legal research costs and document retrieval fees that are not authorized by statute." (Opp. at p. 2.) Defendant maintains its counsel billed a reasonable amount of time for the SLAPP motion plus the present motion – 54.7 hours of attorney time plus 9.1 hours of paralegal time. The SLAPP motion included approximately 17 pages of argument and included a six-page declaration with 6 exhibits. Defendant also filed a nine-page reply. The Court finds this was a reasonable amount of time, adequately supported by detailed billing records. Regarding pre-complaint work, Defendant explains this work was necessary to attempt to dissuade Plaintiff from filing its SLAPP suit. In a supplemental declaration filed on 7/28/26, Defendant's counsel explains that their hourly rates increased effective 4/1/26 but the increased rates are not reflected in the motion, explaining the apparent discrepancy in the moving papers. The Court finds the billing rates of between $310-365/hour for attorneys and $170 for paralegals are reasonable. Defendant does not appear to have included any billing for legal secretaries. Defendant has shown the costs of $805.12 were reasonably incurred for legal research expenses and electronic service and filing. However, the motion was only partially successful – it was granted as to six of Plaintiff's eight causes of action, or 75% of the claims addressed in the motion. "[A] partially prevailing party is not necessarily entitled to all incurred fees even where the work on the successful and unsuccessful claims was overlapping. [Citations] Instead, the court must consider the significance of the overall relief obtained by the prevailing party in relation to the hours reasonably expended on the litigation and whether the expenditure of counsel's time was reasonable in relation to the success achieved. [Citation]" (*Mann v. Quality Old Time Service, Inc.* (2006) 139 Cal.App.4th 328, 344.) Here, Defendant obtained a significant dismissal of six non-contract claims which substantially reduced the scope of its defense and potential liability, but substantive contract-based claims remain. Therefore, the motion is granted in the amount of $14,403.47 based

		on a 25% reduction of the total fees and costs since Defendant prevailed as to 75% of the causes of action addressed in the motion.
13.	**GUNN VS. GREEN MEADOWS HOME HEALTH CARE, INC** **2023-01370855**	**1. MOTION FOR TERMINATING SANCTIONS** **2. MOTION TO BE RELEVED AS COUNSEL OF RECORD** NO TENTATIVE RULING
14.	**SOLIMAN VS. LAWYERS TITLE COMPANY**	**MOTION FOR SUMMARY JUDGMENT AND/OR ADJUDICATION** Plaintiff/Cross-Defendant Salaheldin S. Soliman's ("Soliman") motion for: (1) summary judgment of Defendant/Cross-Complainant PFN Lending Group, Inc.'s ("PFN") Cross-Complaint or, in the alternative, summary adjudication of PFN's two causes of action therein; and (2) summary adjudication of Soliman's Second Cause of Action for Declaratory Relief alleged in the First Amended Complaint ("FAC") is DENIED. Soliman's Objections to Declaration of March Shenkman are SUSTAINED as to Objection Nos. 2 and 4 and OVERRULED as to the remaining. <u>Summary Judgment/Adjudication as to PFN's Cross-Complaint</u>: The Cross-Complaint alleges Soliman is the owner of the real property located at 2712 North Bently Street, Orange, CA 92867 ("Property"). (Cross-Complaint, ¶ 6.) In 2023, PFN loaned Soliman $519,000 evidenced by a balloon note executed by Soliman in favor of PFN (the "Note"). (Cross-Complaint, ¶¶7-8.) The Note was secured by a 2023 Deed of Trust executed by Soliman and recorded against the Property. (Cross-Complaint, ¶9.) The 2023 Deed of Trust recorded in the Official Records of Orange County on November 3, 2023, as Instrument No. 2023000269729 (the "2023 DOT") identifies Soliman as borrower and PFN as Lender and beneficiary. (Soliman Separate Statement of Undisputed Material Facts ("UMF") 4.) Prior to the 2023 DOT, a Deed of Trust executed by the Property's former owners, Kevin and Michelle Kane, had been recorded against the Property in the Official Records of Orange County on July 17, 2006, as Instrument No. 2006000473983 ("2006 DOT"). (Soliman RJN, Ex. D.) On February 17, 2024, a Notice of Default based on a default under the 2006 DOT was recorded against the Property. (Soliman RJN, Ex. A, ¶11). On July 10, 2024, PFN's counsel advised Soliman's counsel that the Section 4 covenant in the 2023 DOT required Soliman to discharge the senior lien—the 2006 DOT—and that failure to do so was a default; Soliman refused to discharge the senior lien. (Soliman RJN, Ex. A, ¶12).

		PFN's Cross-Complaint alleges two causes of action against Soliman: (1) breach of contract and (2) declaratory relief. The breach of contract cause of action alleges that Soliman breached the 2023 DOT by failing to "promptly discharge" the 2006 DOT in compliance with Section 4 of the 2023 DOT. (Cross-Complaint, ¶ 18.) The declaratory relief cause of action seeks a declaration that Soliman is obligated under the 2023 DOT to pay off and discharge the 2006 DOT. (Cross-Complaint, ¶ 22.) Soliman moves for judgment on both causes of action on the grounds Section 4 does not require him to discharge the 2003 DOT. Section 4 of the 2023 DOT states: "Charges; Liens. Borrower shall pay all taxes, assessments, charges, fines, and impositions attributable to the Property which can attain priority over this Security Instrument, leasehold payments or ground rents on the Property, if any, and Community Association Dues, Fees, and Assessments, if any. To the extent that these items are Escrow Items, Borrower shall pay them in the manner provided in Section 3. Borrower shall promptly discharge any lien which has priority over this Security Instrument unless Borrower: (a) agrees in writing to the payment of the obligation secured by the lien in a manner acceptable to Lender, but only so long as Borrower is performing such agreement; (b) contests the lien in good faith by, or defends against enforcement of the lien in, legal proceedings which in Lender's opinion operate to prevent the enforcement of the lien while those proceedings are pending, but only until such proceedings are concluded; or (c) secures from the holder of the lien an agreement satisfactory to Lender subordinating the lien to this Security Instrument. If Lender determines that any part of the Property is subject to a lien which can attain priority over this Security Instrument, Lender may give Borrower a notice identifying the lien. Within 10 days of the date on which that notice is given, Borrower shall satisfy the lien or take one or more of the actions set forth above in this Section 4. Lender may require Borrower to pay a one-time charge for a real estate tax verification and/or reporting service used by Lender in connection with this Loan." (UMF 5 [emphasis added].) Courts interpret a deed of trust, an executed contract, under the rules of interpretation applicable to contracts in general. (*Thoryk v. San Diego Gas & Elec. Co.* (2014) 225 Cal.App.4th 386, 397.) "A contract must be so interpreted as to give effect to the mutual intention of the parties as it existed at the time of contracting, so far as the same is ascertainable and lawful." (Civ. Code § 1636.) "When a contract is reduced to writing, the intention of the parties is to be ascertained from the writing alone, if possible ..." (Civ. Code § 1639.)

		The words are to be understood "in their ordinary and popular sense." (Civ. Code § 1644.) Further, "[t]he whole of a contract is to be taken together, so as to give effect to every part, if reasonably practicable, each clause helping to interpret the other." (Civ. Code § 1641.) " ' "As a rule, the language of an instrument must govern its interpretation if the language is clear and explicit. [Citations.] A court must view the language in light of the instrument as a whole and not use a 'disjointed, single-paragraph, strict construction approach' [citation]." If possible, the court should give effect to every provision. [Citations.] An interpretation which renders part of the instrument to be surplusage should be avoided. [Citations.]' " (*See Nat'l City Police Officers' Ass'n v. City of Nat'l City* (2001) 87 Cal.App.4th 1274, 1279.) Soliman contends Section 4 is a loan-maintenance covenant, not a retroactive title-risk transfer. Soliman argues Section 4 is titled "Charges; Liens" and the first sentence in the first paragraph requires borrower to pay taxes, assessments, charges, fines, impositions, leasehold payments, ground rents, and association dues which "can attain priority" over the lender's security. Soliman argues the second paragraph contains a discharge covenant which requires that once such a lien exists and "has priority," the borrower must discharge it, arrange payment, contest it in good faith, or obtain subordination. Soliman argues the notice sentence in the second paragraph expressly connects the two parts, directing that when the Lender identifies a lien that "can attain priority," the Borrower shall "satisfy the lien or take one or more of the actions set forth above in this Section 4." (UMF 5.) Based on the foregoing, Soliman contends Section 4 applies to a priority maintenance during the life of the loan and does not apply to borrower indemnity for a prior owner's mortgage debt already recorded years before the 2023 DOT. Soliman's interpretation of Section 4 fails to address the plain language of the "promptly discharge" covenant of the second paragraph: "Borrower shall promptly discharge <u>any lien</u> which has priority over this Security Instrument …" The provision uses the all-encompassing term "any." Read in its ordinary and popular sense, "any" does not provide a carve out for liens that already existed when the 2023 DOT was recorded. Further, PFN argues Section 4 contains two distinct operative phrases describing two distinct categories of liens. The first paragraph and the notice mechanism address liens that "can attain priority"—a forward looking, conditional provision describing liens that may arise and obtain priority during the life of the loan (e.g., tax or assessment liens). The second paragraph, the discharge covenant, by contrast, addresses a lien that "has priority"—a present-tense provision describing liens that already hold priority like the 2006 DOT. In support, PFN has submitted the declaration of its CEO and President, Marc Shenkman, who states that at the time the 2023 DOT was provided to Soliman, PFN would have intended that the provision

		stating, "Borrower shall promptly discharge any lien which has priority over this Security Instrument[,]" applied to all prior recorded deeds of trust, including the Senior DOT. (Notice of Errata re: Shenkman Decl., ¶ 7.) Further, Shenkman states, to avoid surplusage, at the time that the PFN DOT was provided to Soliman, PFN would have intended that Section 4 of the PFN DOT addressed both (i) liens with priority that existed on the Property as of the recording of the PFN DOT, and (ii) liens that gained priority after the recording of the PFN DOT. (Shenkman Decl., ¶ 9.) Shenkman also states that based on his involvement in the loan industry for over 38 years, he has come to understand that Section 4 of a Fannie Mae/Freddie Mac uniform instrument form deed of trust Form 3005, as an industry custom and practice, is interpreted in the loan industry as referring to two types of liens that a borrower is obligated to discharge: (i) liens with priority that existed prior to the recording of the deed of trust, and (ii) liens that gained priority after the recording of the deed of trust. (Shenkman Decl., ¶ 13.) Considering the evidence presented in opposition, the language of the 2023 DOT is fairly susceptible of either one of the interpretations advanced by Soliman and PFN. " ' "[W]hen the meaning of the language of a contract is doubtful or uncertain and parol evidence is introduced in aid of its interpretation, 'the question of meaning is one of fact.' [Citation.] The contract ... language is sufficiently broad, uncertain in its meaning to require an examination into extrinsic circumstances to ascertain the intent of the parties. In such circumstances it is the primary duty of the trial court to construe the language after a full opportunity afforded to all parties in the case to produce evidence of facts, circumstances and conditions surrounding its effect and the conduct of the parties relating thereto. [Citation.] Such duty is not performed, cannot be performed by the summary judgment procedures." ' " [Citation.] (*Leep v. Am. Ship Mgmt.* (2005) 126 Cal.App.4th 1028, 1041.) Given the ambiguity inherent in the agreement in this case, summary adjudication is not appropriate as to either the breach of contract or declaratory relief cause of action alleged in PFN's Cross-Complaint. Therefore, summary adjudication as to the Cross-Complaint is DENIED. <u>Summary Adjudication as to Soliman's FAC</u>: Soliman seeks summary adjudication of his second cause of action for declaratory relief. Soliman's declaratory relief cause of action seeks a declaration that Soliman is not obligated under Section 4 of the 2023 DOT to pay off and discharge the 2006 DOT. (FAC, ¶ 31.) This is the opposite of the declaration sought by PFN in its declaratory relief cause of action as alleged in its Cross-Complaint. For the reasons discussed as to the Cross-Complaint, summary adjudication of the declaratory relief cause of action is also DENIED.

		Moving party to give notice.